

MyHOAAppeal - Educational worksheet

Conflicts of Interest on HOA Boards

Educational use only. Not legal advice. Verify against your CC&Rs and state law.

== VISUAL SUMMARY ==

Five takeaways to remember about recusal, related-party bias, and process fairness. Use them as a one-page briefing before you write or speak.

- * Start with procedure: Map notice, cure, hearing, and decision duties before debating the aesthetics of recusal, related-party bias, and process fairness.
- * Make the decision point explicit: Your appeal should answer whether a conflict tainted the fine decision with exhibits, not adjectives.
- * Compare options deliberately: Know whether you are closer to Disclosed conflict, Hidden conflict, or No conflict evidence before making a decision.
- * Write one remedy sentence: Boards skim-state waive, reduce, re-notice, or reverse in a single line tied to recusal, related-party bias, and process fairness.
- * Keep escalation proportionate: Match collections risk and dollar amount to mediation, counsel, or court only after the packet is sent.

== PROCESS FLOW ==

1. Capture the trigger

Save the notice, portal message, invoice, or verbal summary that started the dispute about recusal, related-party bias, and process fairness. Note the date received.

2. Pull controlling text

Locate the statute, CC&R, rule, and fine-schedule language that supposedly authorizes action on recusal, related-party bias, and process fairness.

3. Build the evidence spine

Assemble dated photos, correspondence, ledgers, and comparables that speak directly to whether a conflict tainted the fine decision.

4. Choose the procedural path

Pick cure, informal dispute, formal hearing, payment under protest, ADR, or counsel based on deadlines and stakes around recusal, related-party bias, and process fairness.

5. Submit a written ask

Send one clear remedy request (waive, reduce, re-notice, or reverse) tied to whether a conflict tainted the fine decision, with exhibits attached.

6. Confirm the outcome in writing

Demand or calendar a written decision, update your ledger notes, and decide whether escalation is still proportionate.

== CHECKLIST ==

Documents on hand

- ☐ Written notice or invoice tied to recusal, related-party bias, and process fairness
- ☐ Current CC&Rs, rules, and fine schedule excerpts
- ☐ Delivery proof (certified mail, portal export, or email headers)

Evidence quality

- ☐ Dated materials that address whether a conflict tainted the fine decision
- ☐ One-page timeline of key events
- ☐ Exhibit index with short labels (A, B, C...)

Procedural safeguards

- ☐ Appeal / cure / hearing deadline calendared
- ☐ Clear written remedy (waive, reduce, re-notice, reverse)
- ☐ Plan for payment under protest if lien pressure rises

Before you stop working the file

- ☐ Confirm whether disclosed conflict or hidden conflict better describes your posture
- ☐ Save a PDF export of the full packet
- ☐ Note any verbal promises in a same-day email

== TIMELINE ==

Trigger / notice | Day 0

Violation letter, invoice, or demand referencing recusal, related-party bias, and process fairness arrives.

Document pull | Days 0-3

Gather CC&Rs, schedules, and records that control whether a conflict tainted the fine decision.

Cure or early response | Per notice (often 7-14 days)

Cure if appropriate; otherwise send a written dispute preserving hearing rights.

Hearing / board review | Often 2-6 weeks after request

Present indexed exhibits focused on recusal, related-party bias, and process fairness; ask for a written decision.

Written decision | Promptly after hearing (document-driven)

Confirm outcome in writing; calendar any post-decision deadlines.

Escalation fork | After denial or silence

Choose payment under protest, ADR, counsel, or court based on stakes around recusal, related-party bias, and process fairness.

== DECISION TREE (print path) ==

Use this yes/no path to decide your next action on recusal, related-party bias, and process fairness. Outcomes are educational starting points-confirm against your CC&Rs and state law.

Q (start): Do you already have written materials covering recusal, related-party bias, and process fairness?

- Yes - I have notices or governing excerpts -> go to quality

- No - I am starting from a verbal warning or rumor -> go to collect

Q (collect): Can you obtain the written notice, fine schedule, and relevant CC&R/rule pages within 48 hours?

- Yes - I can request or download them -> Request the file in writing today, then re-run this tree for recusal, related-party bias, and process fairness. Do not rely on memory alone.

- No - the association will not provide records -> Send a dated records request, keep delivery proof, and note the refusal in your appeal packet about recusal, related-party bias, and process fairness.

Q (quality): Does your packet clearly address whether a conflict tainted the fine decision?

- Yes - defects and facts are indexed -> go to deadline

- Not yet - gaps remain -> Fill gaps with dated exhibits before you argue recusal, related-party bias, and process fairness. Incomplete packets invite denials on procedure.

Q (deadline): Is an appeal, cure, or response deadline still open?

- Yes - time remains -> Calendar the deadline, submit a written position on recusal, related-party bias, and process fairness, and request a hearing or written decision in the same letter.

- Unsure / possibly missed -> Ask in writing for the controlling deadline and whether late submissions are accepted. Preserve recusal, related-party bias, and process fairness arguments even while clarifying timing.

- No - the window closed -> Document why the window was missed (late notice, portal failure, etc.) and escalate via payment-under-protest, mediation, or counsel depending on stakes.

== COMPARISON SNAPSHOT ==

Columns: Disclosed conflict | Hidden conflict | No conflict evidence

Typical signal

[Disclosed conflict] Clear written basis for disclosed conflict

[Hidden conflict] Partial or contested basis for hidden conflict

[No conflict evidence] High risk if you only have no conflict evidence

Owner priority

[Disclosed conflict] Preserve disclosed conflict with indexed proof
[Hidden conflict] Convert hidden conflict into a documented record
[No conflict evidence] Do not rely on no conflict evidence alone
Board / manager reaction
[Disclosed conflict] Harder to dismiss when exhibits are complete
[Hidden conflict] May stall or ask for more information
[No conflict evidence] Often treated as insufficient without follow-up writing
Next educational move
[Disclosed conflict] Advance the formal path for recusal, related-party bias, and process fairness
[Hidden conflict] Send a clarifying letter addressing whether a conflict tainted the fine decision
[No conflict evidence] Collect missing documents before arguing substance
Escalation risk if ignored
[Disclosed conflict] Lower if you stay on deadline
[Hidden conflict] Medium - ambiguity can harden into denial
[No conflict evidence] Higher - no conflict evidence gaps feed collections narratives

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